

Section 18.

SECOND SCHEDULE

REPEALS

Session and Chapter	Short Title	Extent of Repeal
10 & 11 Geo. 5. c. 50.	Mining Industry Act, 1920.	Section twenty.
16 & 17 Geo. 5. c. 28.	Mining Industry Act, 1926.	Part III and the Schedule.
24 & 25 Geo. 5. c. 9.	Mining Industry (Welfare Fund) Act, 1934.	The whole Act.
2 & 3 Geo. 6. c. 9.	Mining Industry (Welfare Fund) Act, 1939.	The whole Act.
7 & 8 Geo. 6. c. 3.	Mining Industry (Welfare Fund) Act, 1943.	The whole Act.
9 & 10 Geo. 6. c. 59.	Coal Industry Nationalisation Act, 1946.	Section forty.
	Defence (General) Regulations, 1939.	Regulation 60BA.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Mining Industry Act, 1920	10 & 11 Geo. 5. c. 50.
Mining Industry Act, 1926	16 & 17 Geo. 5. c. 28.
Mining Industry (Welfare Fund) Act, 1939	2 & 3 Geo. 6. c. 9.
Coal Industry Nationalisation Act, 1946 ...	9 & 10 Geo. 6. c. 59.
Companies Act, 1948	11 & 12 Geo. 6. c. 38.

CHAPTER 24

Army and Air Force (Annual) Act, 1952

ARRANGEMENT OF SECTIONS

Section

1. Short title.
2. Army Act and Air Force Act to be in force for specified times.

AMENDMENTS OF THE ARMY AND AIR FORCE ACTS,
CONSEQUENTIAL AMENDMENTS OF OTHER ACTS,
REPEALS AND SAVINGS

PART I

AMENDMENTS OF THE ARMY ACT APPLICABLE ALSO
(SUBJECT TO MODIFICATIONS) TO THE AIR FORCE ACT

3. Amendment of definition of "active service".
4. Amendment of definition of "enemy".
5. Power of certain officers to take affidavits and declarations.
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PART II

AMENDMENTS OF THE ARMY ACT

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12. Savings for regulations and rules.

Removal of references to volunteers, &c.

13. Removal of references to volunteers, &c.

PART III

AMENDMENT OF THE AIR FORCE ACT

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MISCELLANEOUS

15. Amendment of s. 190 of Army Act and Air Force Act, and consequential amendments.
16. Repeal of obsolete provisions of Army and Air Force Acts.
17. Printing of amendments to Army and Air Force Acts.
18. Consequential amendments of Acts other than Army and Air Force Acts.
19. Date of operation of amendments.

SCHEDULES:

First Schedule—Amendments of the Army Act consequential on Part II of this Act.

Second Schedule—Amendments of the Army Act for purpose of removal of references to volunteers, &c.

Third Schedule—Consequential amendments of Acts other than Army and Air Force Acts.

An Act to provide, until the end of the month of July, nineteen hundred and fifty-three, for the discipline and regulation of the Army and the Air Force and to amend certain enactments relating to the armed forces of the Crown. [30th April, 1952.]

WHEREAS the raising or keeping of a standing army within the United Kingdom in time of peace, unless it be with the consent of Parliament, is against law:

And whereas it is adjudged necessary by Her Majesty and this present Parliament that a body of land forces should be continued for the safety of the United Kingdom and the defence

of the possessions of Her Majesty's Crown, and that the whole number of such forces should consist of five hundred and fifty-five thousand :

And whereas it is adjudged necessary that a body of air forces should be continued for the purposes aforesaid, and that the whole number of such forces should consist of three hundred and fifteen thousand :

And whereas it is also judged necessary for the safety of the United Kingdom and the defence of the possessions of this realm that a body of Royal Marine forces should be employed in Her Majesty's fleet and naval service under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or be sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of Her Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm ; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law or to the Air Force Act, in their duty, that an exact discipline be observed and that persons belonging to the said forces who mutiny, or stir up sedition, or desert Her Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military or air force discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow :

And whereas the Army Act and the Air Force Act will expire in the year nineteen hundred and fifty-two, on the following days :—

- (a) in Great Britain and Northern Ireland, the Channel Islands and the Isle of Man, on the thirtieth day of April ; and
- (b) elsewhere, whether within or without Her Majesty's dominions, on the thirty-first day of July :

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Short title.

1. This Act may be cited as the Army and Air Force (Annual) Act, 1952.

2.—(1) The Army Act and the Air Force Act shall be and remain in force during the periods hereinafter mentioned, and no longer, unless otherwise provided by Parliament, that is to say:—

(a) within Great Britain and Northern Ireland, the Channel Islands and the Isle of Man, from the thirtieth day of April, nineteen hundred and fifty-two, to the thirty-first day of July, nineteen hundred and fifty-three, both inclusive; and

(b) elsewhere, whether within or without Her Majesty's dominions, from the thirty-first day of July, nineteen hundred and fifty-two, to the thirty-first day of July, nineteen hundred and fifty-three, both inclusive.

(2) The Army Act and the Air Force Act, while in force, shall apply to persons subject to military law or to the Air Force Act, as the case may be, whether within or without Her Majesty's dominions.

(3) A person subject to military law or to the Air Force Act shall not be exempted from the provisions of the Army Act or the Air Force Act by reason only that the number of the forces for the time being in the service of Her Majesty, exclusive of the marine forces, is either greater or less than the numbers hereinbefore mentioned.

AMENDMENTS OF THE ARMY AND AIR FORCE ACTS, CONSEQUENTIAL AMENDMENTS OF OTHER ACTS, REPEALS AND SAVINGS

PART I

AMENDMENTS OF THE ARMY ACT APPLICABLE ALSO (SUBJECT TO MODIFICATIONS) TO THE AIR FORCE ACT

3.—(1) Subsection (1) of section one hundred and eighty-nine of the Army Act (which defines the expression "on active service") is hereby repealed, and in section one hundred and ninety of that Act there shall be inserted the following definition:—

"‘active service’, in relation to a person subject to military law, means service in or with a force which is engaged in operations against an enemy or is engaged in a foreign country in operations for the protection of life or property or is in military occupation of a foreign country”.

(2) Subsection (1) of section one hundred and eighty-nine of the Air Force Act (which defines the expression "on active service") is hereby repealed, and in section one hundred and

Army Act and
Air Force Act
to be in force
for specified
times.

Amendment
of definition
of "active
service".

PART I
—cont.

ninety of that Act there shall be inserted a definition of "active service" in other respects similar to the definition hereinbefore set out but modified by the substitution, for the words "military law", of the words "this Act".

**Amendment
of definition
of "enemy".**

4. In the definition of "enemy" in paragraph (20) of section one hundred and ninety of the Army Act and paragraph (20) of section one hundred and ninety of the Air Force Act, for the words "and pirates" there shall be substituted the words "
, pirates and all persons engaged in armed operations against any of Her Majesty's forces".

**Power of
certain officers
to take
affidavits and
declarations.**

5.—(1) At the end of Part IV of the Army Act there shall be inserted the following section:—

"174B.—(1) An officer of the regular forces of a rank not below that of major (hereinafter referred to as an "authorised officer") may, at a place outside the United Kingdom, take affidavits and declarations from any of the following persons, that is to say, persons subject to military law and persons not so subject who are employed by or are in the service of, or accompany, Her Majesty's troops or any portion thereof.

(2) A document purporting to have subscribed thereto the signature of an authorised officer in testimony of an affidavit or declaration being taken before him in pursuance of this section and containing in the jurat or attestation a statement of the date on which and the place at which the affidavit or declaration was taken and of the full name and rank of that officer shall be admitted in evidence without proof of the signature being the signature of that officer or of the facts so stated".

(2) At the end of Part IV of the Air Force Act there shall be inserted a section in other respects similar to the section hereinbefore set out but modified by the substitution, for the words "the regular forces", of the words "the regular air force", for the word "major", of the words "squadron leader", for the words "military law", of the words "this Act" and for the words "Her Majesty's troops", of the words "Her Majesty's air force".

**Substitution of
references to
the Queen.**

6. Throughout the Army Act and the Air Force Act for the words "His Majesty", "His Majesty's" and "King's" there shall be substituted respectively the words "Her Majesty", "Her Majesty's" and "Queen's"; and there shall also be made in those Acts such other alterations of pronouns as are, in consequence of the substitutions effected by the foregoing provisions of this section, required by the rules of grammar.

PART II

AMENDMENTS OF THE ARMY ACT

Enlistment

7.—(1) Sections seventy-six to seventy-nine, eighty-four and eighty-six of the Army Act are hereby repealed, and in lieu thereof the following sections shall be inserted at the beginning of Part II of that Act:—

New provisions
with respect to
enlistment.

“ 76.—(1) A person may be enlisted to serve Her Majesty as a soldier of the regular forces in accordance with one or other of the following provisions, namely—

(a) for a term of twenty-two years of army service beginning with the date of his attestation, with such a right as is mentioned in the next following section to determine that service at the expiration of the period of three years beginning with that date or of any of the successive periods of three years, subject, however, in the cases mentioned in that section, to his becoming liable as therein mentioned to serve in the reserve for the periods so mentioned ;

(b) for such term (not exceeding twelve years) as may be prescribed, beginning with the date of his attestation, being—

(i) a term wholly of army service ; or

(ii) a term consisting, as to so much thereof as may be prescribed, of army service and, as to the residue thereof, of service in the reserve ;

(c) in the case of a person who, on the date of his attestation, has not attained the age of seventeen years and six months, for a term ending with the expiration of such period (not exceeding twelve years) beginning with the date on which he attains the age of eighteen years as may be prescribed, being—

(i) a term wholly of army service ; or

(ii) a term consisting, as to so much thereof as may be prescribed, of army service and, as to the residue thereof, of service in the reserve.

(2) Nothing in paragraph (c) of the foregoing subsection shall be construed as implying that any such person as is therein mentioned is precluded from being enlisted in accordance with paragraph (a) or (b) of that subsection.

(3) Any power conferred by subsection (1) of this section to prescribe a term for which a person may be enlisted, the portion of such a term that is to consist of army service or

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—cont.

a period beginning with the date on which a person attains the age of eighteen years shall include power to prescribe different terms, portions or periods, either generally or in relation to different classes of cases.

77.—(1) A person enlisted for a term of twenty-two years of army service shall have the right, exercisable by notice in writing in the prescribed form given to his commanding officer not less than six nor more than twelve months before the expiration of the period of three years beginning with the date of his attestation, or of any of the successive periods of three years, to determine that service at the expiration of that period, but—

- (a) where he duly determines that service at the expiration of the period of three years beginning with the date of his attestation, he shall be liable to serve in the reserve for the period of four years beginning with the expiration of that period; and
- (b) where he duly determines that service at the expiration of the period of six years beginning with the date of his attestation, he shall be liable to serve in the reserve for the period of three years beginning with the expiration of that period.

(2) A notice given by a person under the foregoing subsection may be withdrawn by a notice in writing in the prescribed form given by him to his commanding officer at any time before the expiration of the relevant period of three years, but, where the last-mentioned notice is given within the period of six months immediately preceding the expiration of the said period of three years, it shall be of no effect unless approved by the competent military authority.

(3) Without prejudice to the operation of any rule of law relating to the waiver of statutory rights, a person enlisted for a term of twenty-two years of army service may, in consideration of his being permitted to undergo a prescribed course of instruction or a course of instruction of a prescribed class or of the conferring on him of such other benefit or advantage as may be prescribed, waive, in the prescribed form and manner, the right conferred by subsection (1) of this section in so far as an exercise thereof would operate to determine his army service before the expiration of such period beginning with the day on which that course of instruction ends as may be prescribed or, as the case may be, before the expiration of such period as may be prescribed in relation to that other benefit or advantage.

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—cont.

78.—(1) A person enlisted for a term not exceeding twelve years beginning with the date of his attestation may, at any time while he is in army service, give to his commanding officer written notice in the prescribed form of his desire to be treated for the purposes of this Act as if he had been enlisted for a term of twenty-two years of army service and, if the competent military authority approve, he shall, as from the date on which approval is given, be deemed, for those purposes, to have, on the date of his attestation, been enlisted for the last-mentioned term and not to have been enlisted for the first-mentioned term.

(2) A person enlisted for a term ending with the expiration of a period beginning with the day on which he attains the age of eighteen years may, at any time while he is in army service after having attained the age of seventeen years and six months, give to his commanding officer written notice in the prescribed form of his desire to be treated for the purposes of this Act as if, on the day on which he attains or, as the case may be, attained the age of eighteen years, he had been enlisted for a term of twenty-two years of army service and, if the competent military authority approve, he shall, as from the date on which approval is given or the said day (whichever is the later) be deemed, for those purposes, to have, on the said day, been enlisted for the last-mentioned term and not to have been enlisted for the first-mentioned term.

(3) Notwithstanding anything in subsection (1) or (2) of this section, where a person has exercised the right conferred by either of those subsections, the right conferred by subsection (1) of the last foregoing section shall not be exercisable by him in circumstances in which the exercise thereof by him would result in the period of his army service being less than it would have been if he had not exercised the right conferred by subsection (1) or (2) of this section.

79.—(1) Without prejudice to the right conferred by subsection (1) of section seventy-seven of this Act, a person enlisted for a term of twenty-two years of army service may, at any time before he has completed nine years' service and when he is in army service, and on written application in that behalf made by him to the competent military authority and with the consent of that authority, be transferred to the reserve subject to his being liable to serve therein for whichever of the following periods is appropriate in his case, that is to say—

- (a) if he is so transferred before he has completed six years' service, the period of four years beginning with the day on which he is so transferred;

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—cont.

- (b) if he is so transferred after he has completed six years' service but before he has completed nine years' service, the period of three years beginning with the day on which he is so transferred.

(2) A person enlisted otherwise than for a term of twenty-two years' army service, whether the term for which he was enlisted consists wholly of army service or partly of army service and partly of service in the reserve, may, at any time when he is in army service and on written application in that behalf made by him to the competent military authority and with the consent of that authority—

- (a) if he was enlisted for a term ending before the expiration of a period of twelve years beginning with the date of his attestation or the date of his attaining the age of eighteen years, simultaneously—

(i) extend the term for which he was enlisted for such period as may be specified in the application, provided that the extended term does not exceed the period of twelve years beginning with the date of his attestation or, as the case may be, the date of his attaining the age of eighteen years ; and

(ii) extend, by such amount as may be so specified, the period of his army service or the period of his service in the reserve or both ;

- (b) extend the period of his army service for such period as may be specified in the application, provided that the extended period does not exceed the term for which he was enlisted or, if that term has been extended under the foregoing paragraph, that term as so extended ;

- (c) be transferred to the reserve subject to his being liable to serve therein for the residue of the term for which he was enlisted or, if that term has been extended under paragraph (a) of this subsection, for the residue of that term as so extended.

(3) A person in the reserve by virtue of subsection (1) of section seventy-seven of this Act or subsection (1) of this section may, on written application in that behalf made by him to the competent military authority and with the consent of that authority, at any time re-enter upon army service and, according as may be specified in the application, either—

- (a) be treated for the purposes of this Act in all respects as if that service had never been determined ; or

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—cont.

- (b) be subject to a liability to serve in army service for the whole or a specified part of the residue of the period for which he would have been liable to serve in the reserve if he had not re-entered upon army service ;

and a person in the reserve by virtue either of the terms of his enlistment under this Act or of subsection (2) of this section may, on the like application and with the like consent, at any time re-enter upon army service and be subject to a liability to serve therein, according as may be specified in the application, for the whole or a specified part of the said residue.

80.—(1) Where—

- (a) a soldier of the regular forces is convicted by court-martial of desertion from Her Majesty's service or of fraudulent enlistment ; or
- (b) the trial of such a soldier for either of those offences is, in consequence of his confession, dispensed with by order under section seventy-three of this Act ;

the whole of his previous service shall be forfeited and thereupon the provisions of this Act (except those relating to discharge by purchase and the claiming of apprentices and labourers) shall apply to him, and he shall be liable to serve, in like manner as if the date on which he was convicted or on which the order dispensing with his trial was made were the date of his attestation and he had, on the first-mentioned date, been duly enlisted to serve—

- (i) in a case where he was originally enlisted or was, at the time of the commission of the offence, deemed to have been enlisted for a term of twenty-two years of army service, for that term of army service ; and
- (ii) in any other case, for a term equal to that for which he was originally enlisted together with the period (if any) by which that term had, before the time of the commission of the offence, been extended by virtue of this Act ;

and, in a case falling within sub-paragraph (ii) of this subsection, the term to be served shall, in a case where the soldier was originally enlisted for a term wholly of army service or where he was originally enlisted for a term partly of army service and partly of service in the reserve but subsequently so extended the period of his army service as to leave no period to be served by him in the reserve, be a term wholly of army service, and in any other case shall consist of army service for a period equal to that which he was required to serve by virtue of the terms of his enlistment

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—cont.

together with the period (if any) by which that service had by virtue of this Act been extended before the date of the commission of the offence and of service in the reserve for the residue of the term:

Provided that where the soldier was originally enlisted before attaining the age of seventeen years and six months for a term ending with the expiration of a period beginning with the date of his attaining the age of eighteen years and he was convicted or his trial was dispensed with after he attained the last-mentioned age (whether the offence was committed before or after he attained it), so much of his service as fell to be served before he attained it shall be disregarded.

(2) The Army Council may by regulations make provision for the restoration in whole or in part of any service forfeited under the foregoing subsection to a soldier who may perform good and faithful service or may be recommended by court-martial for, or may otherwise be deemed to merit, restoration of service so forfeited.

(3) Where service of any description is restored to a person by virtue of the last foregoing subsection while he is in army service—

- (a) the amount of the service so restored shall, subject to the provisions of the following paragraphs, be credited to him for the purpose of determining for the purposes of this Act the amount of service, army service or service in the reserve, as the case may require, which he has served or is liable to serve;
- (b) in the case of a person who, when his service is restored, is serving, or subsequently serves, on terms which entitle him to the right conferred by subsection (1) of section seventy-seven of this Act, the restoration shall not operate to alter the dates on which, by reason of the operation of subsection (1) of this section, his army service may be determined in pursuance of an exercise of that right;
- (c) where he exercises that right, paragraphs (a) and (b) of subsection (1) of the said section seventy-seven shall not apply, but he shall, if his army service is determined before he has completed nine years' service (including the amount of service restored to him), be liable to serve in the reserve for the period for which he would have been liable to serve therein if, on the date on which his army service is determined, he had been transferred to the reserve under subsection (1) of section seventy-nine of this Act.

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—cont.

(4) Nothing in this section shall apply to a person who deserts or fraudulently enlists at a time when he is, under the provisions of this Act in that behalf, continued in service after the completion of twenty-two years' service."

(2) Sections eighty, eighty-one, eighty-one A, eighty-two, eighty-three and eighty-five of the Army Act shall be re-numbered respectively as sections eighty-one, eighty-two, eighty-three, eighty-four, eighty-five and eighty-six, and references in any enactment (other than an enactment contained in that Act or this Act) to a section hereby re-numbered shall be construed accordingly.

8.—(1) For section ninety-three of the Army Act (which empowers the Army Council to make regulations for the purpose of enlistment and generally for carrying Part II of that Act into effect) there shall be substituted the following section:—

"93.—(1) The Army Council may make such regulations as appear to them to be necessary or expedient for the purposes of, or in connection with, the enlistment of recruits for the regular forces and generally for carrying this Part of this Act into effect, and in particular, but without prejudice to the generality of the foregoing words, for designating the persons who are authorised to enlist recruits for the regular forces, for prescribing the form of attestation paper to be used for the purpose of the attestation of recruits and for prescribing anything which by this Part of this Act is required or authorised to be prescribed.

(2) Any power conferred by this Part of this Act to make regulations may be exercised from time to time as occasion requires and shall be construed as including power to vary or revoke the regulations by subsequent regulations."

(2) In paragraph (c) of subsection (1) of section one hundred and sixty-three of the Army Act (which paragraph relates to the proof of certain instruments made under that Act) after the words "Queen's regulations" there shall be inserted the words "regulations made under Part II of this Act".

9. In subsection (2) of section one hundred and seventy-six A of the Army Act (which modifies the provisions of that Act in its application to women), after paragraph (b) there shall be inserted the following paragraph:—

Exclusion, in relation to women, of liability to serve in the reserve.

"(bb) so much of Part II of this Act as relates to service in, and transfers to, the reserve shall not apply".

10.—(1) The sections of the Army Act specified in the first column of the First Schedule to this Act shall have effect subject to the amendments respectively specified in relation to those sections in the second column of that Schedule (being amendments consequential on the foregoing provisions of this Part of this Act).

Consequential amendments.

PART II
—*cont.*

(2) References in the said Schedule to sections eighty-one, eighty-four, eighty-five and eighty-six are references to the sections to which those numbers are assigned by subsection (2) of section seven of this Act.

**Transitional
provisions.**

11.—(1) The following provisions of this section shall have effect with respect to any person (other than an officer within the meaning of the Army Act) who, immediately before the sections set out in section seven of this Act come into operation, is in army service or is serving in the reserve otherwise than by virtue of having been enlisted therein.

Any such person as aforesaid is hereafter in this section referred to as “an existing soldier” and the sections set out as aforesaid are hereafter in this section referred to as “the substituted sections”.

(2) Subject to the following provisions of this section, the substituted sections and the First Schedule to this Act (with the exception of so much of that Schedule as amends the Army Act with respect to the prescription of any matter) shall not apply to an existing soldier, and that Act shall continue to apply to him in all respects as if section seven of this Act and that Schedule (with the exception aforesaid) had not been enacted.

(3) An existing soldier (other than one continued in army service after the completion of twenty-two years’ service or one who is in army service or serving in the reserve in consequence of his having been enlisted in pursuance of the National Service (Armed Forces) Act, 1939, section three or four of the Armed Forces (Conditions of Service) Act, 1939, or the National Service Act, 1948) may, at any time when he is in army service, give to his commanding officer written notice in a form prescribed by regulations made by the Army Council of his desire to be treated for the purposes of the Army Act in like manner as a person who is enlisted in accordance with paragraph (a) of subsection (1) of the first of the substituted sections and, if the competent military authority approve, then, as from the date on which approval is given, subsection (2) of this section shall cease to apply to him and (subject to the provisions of the next following subsection) he shall be treated for the purposes aforesaid as if the substituted sections had been in force on whichever of the following dates is appropriate in his case, that is to say—

(a) except in a case falling within paragraph (b) or (c) of this subsection, the date on which he was attested under the Army Act;

(b) in the case of a soldier to whom an order made under the proviso to section seventy-six of that Act has applied and who has been attested on only one occasion under that Act, the date on which he attained the age of eighteen years;

- (c) in the case of a soldier who has been attested on more than one occasion under that Act, the date on which he was last attested thereunder,

and as if he had, on the date appropriate in his case, been enlisted in accordance with paragraph (a) of the said subsection (1) and duly attested:

Provided that the right conferred by subsection (1) of the second of the substituted sections shall not be exercisable by him in circumstances in which the exercise thereof by him would result in the period of his army service being less than it would have been if he had not exercised the right conferred by this subsection.

- (4) In relation to an existing soldier who—

(a) was, by virtue of any enactment (other than the National Service Act, 1948), enlisted to serve as a soldier of the regular forces or man of the Royal Marines or enlisted into the army reserve or the Territorial Army, or was, by virtue of any enactment or otherwise, enrolled in the Auxiliary Territorial Service; and

(b) upon being enlisted or enrolled as aforesaid, or at any time thereafter, entered upon a period of service extending without interruption until the date on which he exercised the right conferred by the last foregoing subsection and comprising no service other than army service, service in the Royal Marines or whole time service in the Territorial Army or the Auxiliary Territorial Service;

the last foregoing subsection shall have effect with the substitution, for any reference to a date appropriate in his case, of a reference to the date on which he entered upon that period or, in the case of a soldier to whom an order made under the proviso to section seventy-six of the Army Act has applied and who entered upon that period before he attained the age of eighteen years, the date on which he attained that age.

For the purposes of this subsection a period of service entered upon by a person shall not be deemed to have been interrupted by reason only that he was discharged from army service or from the force in which he was serving if, on his discharge, he was enlisted or re-enlisted under section seventy-six of the Army Act or was re-enlisted or re-enrolled in that force.

(5) Paragraph (c) of subsection (1) of section one hundred and sixty-three of the Army Act shall apply to regulations made under this section as it applies to regulations made under Part II of that Act.

(6) References in paragraph (b) of subsection (3) and in subsection (4) of this section to section seventy-six of the Army Act shall be construed as references to that section as in force at

PART II
—cont.

the passing of this Act, and references in this section to the reserve and to the competent military authority shall be construed as if they were contained in Part II of the Army Act.

**Savings for
regulations
and rules.**

12.—(1) Nothing in this Part of this Act or the First Schedule to this Act shall affect any regulations made under the section of the Army Act for which a new section is substituted by section eight of this Act or under any of the preceding sections of Part II of the Army Act which are amended by that Schedule, but any such regulations shall, if in force immediately before the coming into operation of the amendments made by this Part of this Act and that Schedule, have effect as if made under the section so substituted.

(2) Nothing in this Part of this Act or the First Schedule to this Act shall affect any rules made by virtue of section one hundred and one of the Army Act, but any such rules shall, if in force immediately before the coming into operation of the amendments aforesaid, have effect as if they were regulations made under the section substituted as aforesaid.

(3) Nothing in this Part of this Act shall affect any power to make regulations conferred by a section of the Army Act repealed by section seven of this Act or any regulations made under a section so repealed, but the power may continue to be exercised in relation to existing soldiers within the meaning of the last foregoing section to the like extent as it might have been exercised, and any such regulations in force immediately before the coming into operation of the amendments aforesaid shall continue to have effect in relation to such soldiers in like manner as they would have continued so to have effect, if the said section seven had not been enacted; and paragraph (c) of subsection (1) of section one hundred and sixty-three of the Army Act shall apply to regulations made (whether before or after the passing of this Act) in exercise of any such power as aforesaid as it applies to regulations made under Part II of that Act.

(4) Any regulations with respect to the restoration of forfeited service made in exercise of such a power as aforesaid and in force immediately before the coming into operation of the amendments aforesaid shall, in addition to having effect as provided by the last foregoing subsection, also have effect for the purposes of the last of the sections set out in section seven of this Act as if they had been made by virtue thereof.

*Removal of references to volunteers, &c.***Removal of
references to
volunteers, &c.**

13. For the purpose of—

- (a) removing from the Army Act references (whether express or implied) to the volunteers; and

- (b) removing from that Act references (whether express or implied) to the militia and securing uniformity of language as respects references to the army reserve ;

PART II
—cont.

the sections of that Act specified in the first column of the Second Schedule to this Act shall have effect subject to the amendments respectively specified in relation thereto in the second column of that Schedule.

PART III

AMENDMENT OF THE AIR FORCE ACT

14. For section eighty-five of the Air Force Act there shall be substituted the following section :—

Amendment
of s. 85 of Air
Force Act.

“ 85. An airman of the regular air force who has been re-engaged under section eighty-four of this Act may, at any time during the last twelve months of the period for which he has been so re-engaged, give notice to his commanding officer of his desire to continue in Her Majesty's service in the regular air force after the end of that period ; and, if the competent air-force authority approve, he may, after the end of that period be continued as an airman of the regular air force in all respects as if his term of service were still unexpired, except that he may claim his discharge at the expiration of any period of three months after he has given notice to his commanding officer of his wish to be discharged.”

PART IV

MISCELLANEOUS

- 15.—(1) Section one hundred and ninety of the Army Act, as amended by the provisions of this Act other than this section, shall be further amended as follows :—

Amendment of
s. 190 of Army
Act and Air
Force Act, and
consequential
amendments.

- (a) in paragraph (4), the word “ and ” at the end of sub-paragraph (c) and the words “ Officers holding honorary commissions are officers within the meaning of this Act ” shall be omitted and at the end of sub-paragraph (d) there shall be inserted the words “ and (e) any officer holding an honorary commission ” ;
- (b) the definitions contained in the section shall, with the omission of the paragraph numbers and of the words “ the expression ”, “ the expressions ” and “ and the expression ”, wherever they occur (except the words “ the expression ” where they secondly occur in the definition of “ horse ”), be rearranged in alphabetical order, paragraphs (7A) and (28) being each treated for this purpose as a single definition relating to the first expression therein mentioned.

PART IV
—cont.

(2) In subsection (3) of section one hundred and eighty-seven AB of the Army Act (which specifies the modifications subject to which that Act has effect in its application to the Federation of Malaya), for the words “paragraph (17) of section one hundred and ninety” there shall be substituted the words “the definition of ‘service’ in section one hundred and ninety”.

(3) The reference in subsection (1) of this section to the Army Act shall be deemed to include a reference to the Air Force Act, but that subsection shall, in its application to the Air Force Act, have effect with the substitution, for the words “paragraphs (7A) and (28)”, of the words “paragraphs (28) and (45)”.

**Repeal of
obsolete
provisions of
Army and Air
Force Acts.**

16. Section eighty-nine of the Army Act and section eighty-nine of the Air Force Act (which authorise the transfer to the reserve of soldiers and airmen whose health renders them unfit for service abroad or whose regular service would end less than two years after they had started to serve abroad and have, through lapse of time, become obsolete) are hereby repealed.

**Printing of
amendments to
Army and Air
Force Acts.**

17.—(1) Section six of the Army and Air Force (Annual) Act, 1942 (which excludes from the operation of the statutory provision for the reprinting of the Army and Air Force Acts with amendments made therein by any subsequent Act, amendments of the Army Act taking effect after the thirtieth day of April, nineteen hundred and forty, and amendments of the Air Force Act taking effect after the thirtieth day of April, nineteen hundred and thirty-nine) is hereby repealed.

(2) The adaptations and modifications made in the Army and Air Force Acts by the Army and Air Force (Women's Service) (Adaptation of Enactments) Order, 1949, the Courts-Martial (Abolition of Penal Servitude and Hard Labour) Order, 1949, and the National Service (Adaptation of Enactments) (Military and Air Forces) Order, 1949, shall, so far as they are in force with respect to those Acts respectively immediately after the coming into operation of the amendments made to those Acts by this Act, have effect as if they were amendments so made, and the said statutory provision shall apply to those adaptations and modifications accordingly.

**Consequential
amendments
of Acts other
than Army and
Air Force Acts.**

18. The Acts specified in the Third Schedule to this Act shall have effect subject to the amendments respectively specified in relation thereto in that Schedule (being amendments consequential on the foregoing provisions of this Act).

**Date of
operation of
amendments.**

19. The amendments made by this Act to the Army and Air Force Acts and the Acts specified in the Third Schedule to this Act shall come into operation on the first day of May, nineteen hundred and fifty-two.

SCHEDULES

FIRST SCHEDULE

Sections 10, 12.

AMENDMENTS OF THE ARMY ACT CONSEQUENTIAL ON
PART II OF THIS ACT*Sections to be amended
and subject matter
thereof**Amendments to be made*

- Section 70 In subsection (1), for paragraph (h) there shall be substituted the following paragraph:—
 (Power of Her Majesty to make rules of procedure.) “(h) Any matter which by any enactment contained in this Part of this Act or Part IV of this Act or by any enactment (other than section one hundred and eighty-four A) contained in Part V of this Act is required or authorised to be prescribed.”
- Section 81 In subsection (1), for the words “the form for the time being authorised by the Army Council” there shall be substituted the words “the prescribed form.”
 (Mode of enlistment and attestation.) In subsection (4), in paragraph (a), the words “for the time being authorised by the Army Council” shall be omitted.
- Section 84 In subsection (2), in the proviso, for the words “a boy” there shall be substituted the words “a recruit”.
 (Enlistment for general service and appointment to corps.)
- Section 85 For the section there shall be substituted the following section:—
 (Effect of appointment to a corps and provisions for transfers.) “85.—(1) A soldier of the regular forces may at any time be transferred by order of the competent military authority from one corps to another.
 (2) Where, in pursuance of the foregoing subsection, a soldier of the regular forces is transferred to a corps in an arm or branch of the service different from that in which he was previously serving, the competent military authority may by order vary the conditions of his service as so to correspond with the general conditions of service in the arm or branch to which he is transferred.”

1ST SCH.
—cont.*Sections to be amended
and subject matter
thereof**Amendments to be made*

Section 86 ...
(Continuance in service
after 22 years' service.)

In subsection (1), after the words "A soldier of the regular forces" there shall be inserted the words "enlisted for a term of twenty-two years of army service", and for the words "the date of his original term of enlistment" there shall be substituted the words "the date of his attestation".

At the end of subsection (1), there shall be added the following:—

"The giving, under the foregoing provisions of this subsection, of a notice by a soldier shall not prejudice the exercise by him after the giving of the notice of the right conferred by subsection (1) of section seventy-seven of this Act".

In subsection (2), for the words from the beginning to "section eighty-four of this Act", there shall be substituted the words "Where a soldier of the regular forces will, at the end of the term for which he was enlisted, have completed not less than twenty-two years' service and will not be entitled to give a notice under the preceding subsection", and for the words "his original term of enlistment" (where they last occur) there shall be substituted the words "that term".

At the end of subsection (2), there shall be added the following:—

"The references in this subsection to the term for which a soldier was enlisted shall, where the term has been extended under subsection (2) of section seventy-nine of this Act, be construed as references to the term as so extended".

At the end of subsection (5) there shall be inserted the words "and section seventy-seven of this Act shall not apply in his case".

For paragraph (b) of subsection (6) there shall be substituted the following paragraph:—

"(b) in relation to a soldier who was enlisted for a term ending with the expiration of a period beginning

*Sections to be amended
and subject matter
thereof**Amendments to be made*

Section 86 (cont.) ...

with the date of his attaining the age of eighteen years, any period during which he was under that age”.

Subsection (7) shall be omitted.

Section 87 ...
(Prolongation of service in certain cases.)

In subsection (2), for the words “be entitled to be transferred to the reserve” there shall be substituted the words “fall to be transferred to the reserve”.

In subsection (4), for the words “a declaration in accordance with any general or special regulations from time to time made by the Army Council” there shall be substituted the words “a declaration to that effect in the prescribed form”.

Section 88 ...
(Continuance of soldiers in army service in case of imminent national danger.)

In subsection (1), for the words “be entitled in pursuance of the terms of their enlistment to be transferred to the reserve” there shall be substituted the words “fall to be transferred to the reserve”.

Section 90 ...
(Discharge or transfer to reserve.)

In subsection (1), for the words “upon the completion of the term of his original enlistment, or of the period of his re-engagement,” there shall be substituted the words “upon becoming entitled to be discharged,”.

In subsection (3) for the words from the beginning to “his original enlistment” there shall be substituted the words “Every soldier of the regular forces, upon falling to be transferred to the reserve,”.

In subsection (4), for the words “when entitled to be transferred to the reserve” there shall be substituted the words “when falling to be transferred to the reserve”.

In subsection (5), for the words “who is discharged on the completion of the term of his original enlistment or his re-engagement, as mentioned in the second subsection of this section” there shall be substituted the words “who is discharged in pursuance of subsection (2) of this section”.

1ST SCH.
—cont.*Sections to be amended
and subject matter
thereof**Amendments to be made*

Section 92
(Regulations as to dis-
charge of soldiers.)

In subsection (1), for the words " in manner provided by this Act and by regulations of the Army Council under this Act " there shall be substituted the words " in accordance with this Part of this Act and regulations thereunder ".

In subsection (2), for the words " from time to time required by regulations of the Army Council under this Act " there shall be substituted the word " pre-
scribed ".

Section 94
(Justices of the peace
for the purposes of
enlistment.)

For the words " the regulations " there shall be substituted the word " regulations ".

Section 100
(Validity of attestation
and enlistment or re-
engagement.)

In subsection (1) the words " or the making of his declaration on re-engagement ", and the words " or duly re-engaged, as the case may be " shall be omitted, and for the words " attestation or re-engagement " there shall be substituted the words " or attestation ".

In subsection (3) the words " or re-engaged ", in both places where they occur, shall be omitted.

Section 161
(Liability to military
law in respect of time
for trial of offences.)

In the proviso, the words from " a soldier who has fraudulently enlisted " to " and that " shall be omitted.

Section 163
(Regulations as to
evidence.)

In subsection (1), in paragraph (a), the words " upon his re-engagement in any of the regular forces, or " shall be omitted.

Section 179
(Modification of Act
with respect to Royal
Marines.)

In paragraph (12) the words " the re-engagement or " shall be omitted.

In paragraph (13) for the words " in the form from time to time directed by the Admiralty " there shall be substituted the words " in such form as may be prescribed by regulations made under Part II of this Act, and—

(a) subsection (1) of section one hundred shall have effect as if after the words " his attestation on his enlistment " there were inserted the words " or the making of his

*Sections to be amended
and subject matter
thereof**Amendments to be made*1ST SCH.
—cont.

- Section 179 (*cont.*) declaration on re-engagement ", as if after the word "enlisted" there were inserted the words "or duly re-engaged, as the case may be", and as if for the words "or attestation" there were substituted the words "attestation or re-engagement", and subsection (3) of that section shall have effect as if for the words "attested or not duly attested" there were substituted the words "attested or re-engaged or not duly attested or re-engaged"; and
- (b) the reference in paragraph (a) of subsection (1) of section one hundred and sixty-three to enrolment in any branch of Her Majesty's service shall be construed as including a reference to re-engagement in the Royal Marines".
- Section 190 For the definition of "prescribed" there shall be substituted the following definition:—
- " "prescribed", when used in Part II of this Act means prescribed by regulations made under that Part, and when used in any other provision of this Act means prescribed by rules made under section seventy of this Act".

SECOND SCHEDULE

Section 13.

AMENDMENTS OF THE ARMY ACT FOR PURPOSE OF REMOVAL
OF REFERENCES TO VOLUNTEERS, &C.*Sections to be
amended**Amendments to be made*

- Section 13 ... In subsection (1), in paragraph (b), for the words "any of the reserve forces" there shall be substituted the words "the army reserve".
- Section 27 ... In paragraph (3) for the words "reserve forces or auxiliary forces" there shall be substituted the words "the army reserve or the territorial army".
- Section 101 ... In subsection (2) the word "force" shall be omitted.
- Section 115 ... In subsection (9), for the words "the regular or auxiliary forces" there shall be substituted the words "the regular forces or the territorial army".

2ND SCH.
—cont.*Sections to be
amended**Amendments to be made*

- Section 138 ... In paragraph (5), for the words "the auxiliary forces," in each place where they occur, there shall be substituted the words "the territorial army".
- Section 142 ... In subsection (2), for the words "the regular reserve or auxiliary forces," there shall be substituted the words "the regular forces, the army reserve or the territorial army".
- Section 175 ... In paragraph (2), for the words "the permanent staffs of any of the auxiliary forces" there shall be substituted the words "the permanent staff of the territorial army".
- Paragraphs (5) and (6) shall be omitted.
- In paragraph (10) the words from "if an officer" to "such a commission" shall be omitted.
- In paragraph (11) for the words "the regular, reserve, or auxiliary forces" there shall be substituted the words "the regular forces, the army reserve or the territorial army".
- Section 176 ... In paragraph (2), for the words "any of the auxiliary forces" there shall be substituted the words "the territorial army".
- In paragraph (5) the word "force" shall be omitted.
- Paragraph (8) shall be omitted.
- In paragraph (8A) for the words "the regular, reserve, or auxiliary forces" there shall be substituted the words "the regular forces, the army reserve or the territorial army".
- Section 177 ... In the second paragraph, for the words "the regular reserve or auxiliary forces" there shall be substituted the words "the regular forces, the army reserve or the territorial army".
- Section 178 ... For the words "the auxiliary forces" there shall be substituted the words "the territorial army" and for the words "the reserve forces" there shall be substituted the words "the army reserve".
- Section 179B ... In subsection (2) the word "force" shall be omitted.
- Section 181 ... In subsection (1) for the words "enlisted or enrolled in any of His Majesty's auxiliary forces" there shall be substituted the words "enlisted in the territorial army".
- In subsection (2) for the words "the auxiliary forces" there shall be substituted the words "the territorial army".
- In subsection (3) for the words "His Majesty's auxiliary forces" there shall be substituted the words "the territorial army".

Section 181 ... In subsection (4) the following shall be omitted, that
(*cont.*) is to say, the words "or the battalion or corps of volunteers", paragraph (*d*), the words "or a battalion or corps of volunteers" and the words "or volunteers".

In subsection (5) for the words "the auxiliary forces" there shall be substituted the words "the territorial army".

In subsection (6) the words "the volunteers or" shall be omitted.

Section 187 ... In paragraph (3) for the words "the auxiliary forces" there shall be substituted the words "the territorial army".

Section 190 ... In paragraph (8) for the words "the reserve forces" there shall be substituted the words "the army reserve," and paragraphs (9), (10) and (12) shall be omitted.

2ND SCH.
—*cont.*

THIRD SCHEDULE

Sections 18, 19.

CONSEQUENTIAL AMENDMENTS OF ACTS OTHER THAN ARMY AND AIR FORCE ACTS

The Territorial and Reserve Forces Act, 1907

7 Edw. 7. c. 9

In subsection (1) of section ten (which applies to the Territorial Army and men thereof certain sections of the Army Act subject to modifications) the words "or re-engagement" shall be omitted, and for paragraph (*b*) there shall be substituted the following paragraphs:—

- "(*b*) in section one hundred, in subsection (1), for the words from the beginning to the word "attestation", in the second place where it occurs, of the words "Where a person after his attestation on his enlistment or the making of his declaration on re-engagement has not, within three months, claimed his discharge on any ground on which he is entitled under this subsection to do so, he shall be deemed to have been duly attested and enlisted or duly re-engaged, as the case may be, and shall not be entitled to claim his discharge on the ground of any error or illegality in his enlistment, attestation or re-engagement", and, in subsection (3), for the words "he has not been attested or not duly attested", of the words "he has not been attested or re-engaged or not duly attested or re-engaged"; and
- (*c*) in paragraph (*a*) of subsection (1) of section one hundred and sixty-three, for the words "upon any enrolment in any branch of Her Majesty's service", of the words "upon his re-engagement in the Territorial Army"."

At the end of the said section ten there shall be added the following subsection:—

- "(3) The attestation paper to be used for the purpose of attesting recruits shall be in such form as may be prescribed".

3RD SCH.
—cont.

The Armed Forces (Conditions of Service) Act, 1939

2 & 3 Geo. 6. c. 68

In subsection (3) of section three (which provides that where a transfer is authorised both by subsection (2) of that section and by section eighty-three of the Army Act, the transfer shall be deemed to have been effected in pursuance of the said subsection (2)), for the reference to section eighty-three of the Army Act there shall be substituted a reference to the provisions of that Act relating to transfers; but the said subsection shall not apply to a transfer authorised by virtue of this Act.

The Army Reserve Act, 1950

14 Geo. 6. c. 32

At the end of subsection (2) of section three (which subsection applies to the army reserve and men thereof certain sections of the Army Act subject to modifications) there shall be added the following words:—

“ and—

- (i) with the substitution, in subsection (1) of section one hundred, for the words from the beginning to the word “ attestation ”, in the second place where it occurs, of the words “ Where a person after his attestation on his enlistment or the making of his declaration on re-engagement has received pay as a man of the army reserve during three months, he shall be deemed to have been duly attested and enlisted or duly re-engaged, as the case may be, and shall not be entitled to claim his discharge on the ground of any error or illegality in his enlistment, attestation or re-engagement ” and, in subsection (3) of that section, for the words “ he has not been attested or not duly attested ”, of the words “ he has not been attested or re-engaged or not duly attested or re-engaged ”; and
- (ii) with the substitution, in paragraph (a) of subsection (1) of section one hundred and sixty-three, for the words “ upon any enrolment in any branch of Her Majesty’s Service ”, of the words “ upon his re-engagement in the army reserve ”.

At the end of the said section three there shall be added the following subsection:—

“(4) The attestation paper to be used for the purpose of attesting recruits shall be in such form as may be prescribed ”.

In subsection (4) of section seven (which section relates, among other things, to transfers of men of the army reserve from one corps to another, subject to a saving for paragraph (2) of section eighty-three of the Army Act) for the reference to paragraph (2) of section eighty-three of the Army Act there shall be substituted a reference to that paragraph as in force immediately before the coming into operation of the amendments made to the Army Act by this Act and to subsection (1) of section eighty-five of the Army Act.

*The Courts-Martial (Appeals) Act, 1951*3RD SCH.
—cont.

14 & 15 Geo. 6. c. 46

In subsection (2) of section twenty-four (which provides that, in Part I of that Act, the expression "on active service", in relation to a person subject to military law, has the meaning assigned to it by subsection (1) of section one hundred and eighty-nine of the Army Act and, in relation to a person subject to the Air Force Act, has the meaning assigned to it by subsection (1) of section one hundred and eighty-nine of that Act) for the words "on active service" there shall be substituted the words "active service" and for the words "subsection (1) of section one hundred and eighty-nine", in both places where they occur, there shall be substituted the words "section one hundred and ninety".

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Territorial and Reserve Forces Act, 1907 ...	7 Edw. 7. c. 9.
Armed Forces (Conditions of Service) Act, 1939	2 & 3 Geo. 6. c. 68.
National Service (Armed Forces) Act, 1939 ...	2 & 3 Geo. 6. c. 81.
Army and Air Force (Annual) Act, 1942 ...	5 & 6 Geo. 6. c. 15.
National Service Act, 1948	11 & 12 Geo. 6. c. 64.
Army Reserve Act, 1950	14 Geo. 6. c. 32.
Courts-Martial (Appeals) Act, 1951	14 & 15 Geo. 6. c. 46.

CHAPTER 25

National Health Service Act, 1952

ARRANGEMENT OF SECTIONS

Section

1. Charges for certain drugs, medicines and appliances.
 2. Charges for dental treatment.
 3. Power to vary or abolish certain charges.
 4. Power to remit charges for dentures supplied by teaching hospitals.
 5. Miscellaneous amendments.
 6. Evasion of charges.
 7. Supplementary and consequential provisions.
 8. Interpretation.
 9. Short title, citation, commencement and extent.
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